

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

CHUCK JAMES JACOBS,

Respondent

) Case Number: FCS-12-347677

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

DE NOVO HEARING SET FOR REQUEST FOR DISMISSAL PER REVIEW OF
COMMISSIONER'S FINDINGS OF FACT AND RECOMMENDATION FILED 07/21/26

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are the County of San Francisco, Respondent Chuck Jacobs (Father), and Petitioner Brianne Taylor (Mother). The parties have one minor child, Alani (DOB: 3/5/2012).
- 2) This matter has been pending since 2012. Genetic testing of Father and Alani was completed in 2013 and a Judgment Regarding Parental Obligations was entered on 1/30/2013. Numerous child support orders have been entered thereafter.
- 3) Per the Order After Hearing filed 4/7/2026, Commissioner Rahim adjudicated Father's Request for Order filed 2/27/2026 in which Father asserted that the San Francisco Superior Court lacked both personal jurisdiction over him as well as subject matter jurisdiction over this child support action, and requested that the Judgment be set aside and vacated. Commissioner Rahim denied the request, finding that Father consented to the Court's jurisdiction by filing an Answer to the

Summons and Complaint on 9/7/2012, appearing at prior hearings, and failing to raise any objection to personal jurisdiction at prior proceedings.

- 4) That same day, on 4/7/2026, Father filed another Request for Order seeking the same relief on the same grounds as set forth in his 2/24/2026 Request for Order. That Request for Order was set for hearing on 6/9/2026 in Dept. 414.
- 5) Per the Order After Hearing filed 6/9/2026, at the hearing on 6/9/2026, Judge Pro Tem Harding adjudicated Father's Request for Order filed 4/7/2026 and denied Father's request to set aside prior child support orders without prejudice.
- 6) That same day, on 6/9/2026, Father filed two additional, identical Requests for Order again asking the Court to set aside prior child support orders on the same grounds as set forth in his Request for Order filed 4/7/2026. Father also raised several new theories for his requested relief, including coercion, duress, and fraud; violation of separation of powers; lack of due process; absence of a voluntary and informed agreement; misrepresentation by his attorney; conflict of interest; and other grounds. One of these Requests for Order was set for hearing on 7/21/2026 in Dept. 414 and the other Request for Order was set for hearing on 8/6/2026 in Dept. 404.
- 7) On 7/21/2026, a hearing was held before Commissioner Rahim. Father objected to Commissioner Rahim hearing the matter and requested that it instead be heard by a Superior Court Judge. That same day, Commissioner Rahim issued Findings and Recommendation of Commissioner, wherein Commissioner Rahim recommended that Father's 6/9/2026 Request for Order be denied, and the matter was set for a de novo hearing in Dept. 404 on 8/4/2026.

B. Findings and Order

- 1) On the Court's own motion, the hearing currently set for 8/6/2026 in Dept. 404 is hereby advanced to 8/4/2026 to be heard together with Father's identical Request for Order, both filed 6/9/2026.
- 2) Father's Requests for Order filed 6/9/2026 are denied in their entirety. The Court finds these Requests for Order seek the same relief as the Requests for Order previously filed and adjudicated on 4/7/2026 and 6/9/2026. The Court construes Father's Requests for Order filed 6/9/2026 to be motions for reconsideration. The Court finds Father failed to raise new facts,

1 circumstances, or law that could have been brought at the time of the prior hearings, as required
2 by Code of Civil Procedure section 1008.

3 3) The Court further finds good cause to deny Father's Requests for Order filed 6/9/2026 on their
4 merits.

5 4) Father is admonished that continued filing of repetitive motions seeking identical relief may
6 result in the Court deeming Father a vexatious litigant.

7 5) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CAITLIN TALBOT,

Petitioner

VS.

SRIVATSAN SRINIVASAN,

Respondent

) Case Number: FPT-23-378236

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Caitlin Talbot (Mother) and Srivatsan Srinivasan (Father) have one minor child together, Suzanne (Zana) (DOB 5/6/2019, age 7). The parties have joint legal and physical custody of Zana with a 2-2-5-5- parenting time schedule.
- 2) At the prior hearing on 5/5/2026, the Court denied Mother's request for sole legal custody, modification of physical custody, and other requests, and granted her request to have Zana attend therapy. The Court set a review hearing for 8/4/2026. Both parties have filed update declarations, which the Court has reviewed and considered.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.

- 1 2) The Court finds it is in Zana's best interest to maintain all current custody and parenting time
- 2 orders and for Zana to continue in therapy.
- 3 3) The parties shall not speak negatively about each other in front of, or within earshot of, Zana.
- 4 4) The parties shall not interfere with or attempt to cut short phone calls Zana has with the other
- 5 parent during their custodial time.
- 6 5) The parties shall communicate in a peaceful and respectful way, and only about Zana.
- 7 6) Mother's remaining requests are denied at this time.
- 8 7) All prior orders not in conflict with these orders shall remain in full force and effect.
- 9 8) The Court will prepare the findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHRISTOPHER MARSH,

Petitioner

VS.

VESNA MARSH,

Respondent

) Case Number: FDI-15-783933

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom video at 9AM on 8/4/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

1) Petitioner Christopher Marsh (Husband) and Respondent Vesna Marsh (Wife) entered into a Stipulated Judgment which was filed on 11/24/2021. Both parties are currently self-represented.

2) Paragraph 3(G) of the Stipulated Judgment filed on 11/24/2021 provides in relevant part:

- a. "Vesna is awarded the following retirement accounts and all funds held therein: Aviva/Tk Account xxx-8658, and...Aviva/Tk Account xxx-1899. The accounts are currently in Chris' name. The parties will meet and confer and work together in preparing the necessary documents for the accounts to be transferred to Vesna's name. The cost of preparation of any documents necessary to effectuate the transfer shall be split 50/50 between the parties."

1 3) No substantive pleadings were filed in this matter since entry of Judgment until Wife filed the
2 instant Request for Order on 3/13/2026. Wife states that Aviva, which is a United Kingdom
3 pension entity, has informed Wife that it requires an England and Wales pension sharing order
4 before it can transfer the Aviva accounts into Wife's name. Wife states that at the time of
5 settlement, she agreed to accept Husband's Aviva UK pension interests because she "understood
6 their value to be roughly equivalent to a premarital gift from my parents that was at issue in the
7 settlement discussions" but she "did not then understand the later implementation problems
8 associated with transferring those pension interests under United Kingdom rules." Wife states she
9 has attempted to work with Husband regarding these issues but he has not been cooperative and
10 he failed to sign a Letter of Authority to authorize her to obtain plan-specific information from
11 Aviva directly. Wife asks the Court to:

- 12 a. Order Husband to cooperate in providing information and authorizations necessary for
13 valuation, including ordering Husband to sign any reasonable authorization or other
14 document necessary to obtain information from Aviva or to carry out any other order the
15 Court makes regarding valuation and enforcement;
 - 16 b. Award Wife an equalizing offset from other property or assets if direct transfer of the
17 Aviva pension interests cannot be completed; and
 - 18 c. Reserve jurisdiction to make any additional orders necessary to effectuate the Judgment
19 and achieve an equal division of the community property awarded by the Judgment.
- 20 4) Per the Proof of Service filed 4/24/2026, Wife's Request for Order, blank Responsive
21 Declaration, and the Tentative Ruling Instructions were personally served on Husband on
22 4/3/2026.
- 23 5) Husband did not file a Responsive Declaration.
- 24 6) At the prior 5/26/2026 hearing, neither party appeared and the party adopted its Tentative Ruling
25 without object from either party. As memorialized in the Findings and Order After Hearing filed
26 6/18/2026, the COurt ordered the parties to do the following:
- 27 a. Wife shall draft a Letter of Authority which authorizes Wife to obtain information
28 regarding Aviva/Tk Account xxx-8658 and Aviva/Tk Account xxx-1899 directly from
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1 Aviva. The Letter of Authority shall contain the information outlined by the Aviva
2 Customer Services Representative in Wife's Exhibit E.

- 3 b. Within 48 hours of being presented with the Letter of Authority drafted by Wife,
4 Husband shall sign and date the letter and return the letter to Wife.
- 5 c. Husband shall forthwith investigate what he can do to have Aviva/Tk Account xxx-8658
6 and Aviva/Tk Account xxx-1899 transferred into Wife's name and take any steps
7 necessary to effectuate those transfers.
- 8 d. A review hearing is set for Tuesday, 8/4/2026 at 9:00 AM in Dept. 404 for the Court to
9 review Husband's compliance with the orders set forth above and for the Court to
10 consider Wife's request to award Wife an equalizing offset from Husband's other
11 property or assets if direct transfer of the Aviva pension interests cannot be completed.
- 12 e. At least 30 calendar days prior to the next hearing date, Husband shall file and serve a
13 declaration which explains: (a) what efforts he has taken to date to have Aviva/Tk
14 Account xxx-8658 and Aviva/Tk Account xxx-1899 transferred into Wife's name; (b)
15 what is the current value of Aviva/Tk Account xxx-8658 and Aviva/Tk Account xxx-
16 1899 (Husband shall also attach documentary evidence supporting these values); and (c)
17 what other assets he has that are equivalent in value to Aviva/Tk Account xxx-8658 and
18 Aviva/Tk Account xxx-1899 that can be transferred to Wife in lieu of the Aviva
19 accounts.
- 20 f. At least 10 calendar days prior to the next hearing date, Wife shall file and serve a
21 declaration providing any material updates related to her 3/13/2026 Request for Order.
- 22 7) On 7/23/2026, Wife filed a Declaration. Wife states that she prepared a Letter of Authority and
23 Husband signed it. Wife also states the Letter of Authority was transmitted to Aviva and Aviva
24 acknowledged receipt. Wife further states that Aviva provided statements showing that the stated
25 transfer value of the two plans as of 6/7/2026 was £187,652.60. Wife states that Wife has
26 received no information from Husband identifying any steps he has taken to effectuate the
27 transfer of the two retirement accounts into her name. Wife asks the Court to review Husband's
28 compliance with prior orders at the 8/4/2026 hearing and make any further orders necessary to
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1 effectuate the Judgment, including an equalizing offset if direct transfer of the Aviva pension
2 interests cannot be completed.

3 8) Husband has filed no pleadings in this matter since the Judgment was entered.

4 **B. Findings and Order**

5 **1) The parties are ordered to appear.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHAEL TODD SCOTT,

Petitioner

VS.

SYLVIA EUGENIA CEDIEL,

Respondent

) Case Number: FDI-18-790419

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

- 1) This matter is on for hearing on Mother's Request for Order filed 12/24/2025 asking the Court to modify the current child and spousal support orders (set forth in the Stipulated Judgment filed 11/3/2021).
- 2) At the prior 5/21/2026 hearing, the parties and their attorneys appeared and stated that they had reached an agreement. The Court set the matter for a review hearing on 8/4/2026 for any remaining issues not resolved by a Stipulation and Order.
- 3) On 7/30/2026, the parties submitted a fully executed proposed Stipulation and Order Re: Child Support. The Stipulation and Order does not include any mention of any remaining outstanding issues from Mother's Request for Order filed 12/24/2025.
- 4) Neither party filed any declarations since the prior 5/21/2026 hearing.
- 5) It does not appear any issues remain outstanding from Mother's Request for Order filed 12/24/2025. The 8/4/2026 hearing is hereby vacated.
- 6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

RACHEL HIATT,

Petitioner

VS.

ROBERT SPEIGHT,

Respondent

) Case Number: FDI-24-799715

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ENFORCEMENT OF STIPULATED JUDGMENT (8/15/25, SECTION 3.2)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Rachel Hiatt (Wife) and Respondent Robert Speight (Husband) married on 5/8/2014 and separated on 4/26/2024, for a marriage of 9 years and 11 months. The parties have no minor children. Both parties are self-represented.
- 2) On 10/29/2025, a Stipulated Judgment was entered in this matter resolving all issues, which provides in relevant part:
 - a. Section 2.2: "To equalize the division of community property assets and obligations as set forth in this Judgment, Wife is Ordered to pay Husband the sum of One Hundred Five Thousand Dollars (\$105,000) via QDRO from her CalPERS 457(b) retirement account. This payment is found by the Court to be a tax-free interspousal transfer related to the cessation of marriage to effect a division of marital property under Internal Revenue Service 1041 and comparable provisions of state law."

b. Section 3.2.1: “It is intended that the total equalization payment of One Hundred Five Thousand Dollars (\$105,000) be distributed in cash directly to Husband pursuant to the QDRO and shall be payable as a lump-sum monetary distribution from Wife’s CalPERS 457(b) account. This amount is a fixed obligation, not contingent upon market conditions, plan valuation, or percentage interest. Husband shall receive the full \$105,000 free and clear of any tax liability, penalty, or encumbrance, and Wife shall indemnify and hold Husband harmless from any [and] all taxes, costs, and penalties associated with this transfer, consistent with Internal Revenue Code Section 1041 and applicable state law. Should any taxes, penalties, or other encumbrance reduce Husband’s initial net receipt, Wife shall reimburse to Husband the exact amount of the reduction. Both parties will work together to effectuate the intention of this agreement, which is for Husband to net \$105,000.”

3) On 11/17/2025, a Qualified Domestic Relations Order was entered requiring the CalPERS 457 Plan to distribute \$105,000 to Husband as a “single lump-sum cash payment.”

4) Now on for hearing is Husband’s Request for Order filed 4/17/2026. Husband states that on 3/26/2026, he received a distribution from the CalPERS 457 plan of \$71,073.38. Husband states that \$30,460.02 was withheld for federal taxes. Husband states he reached out to Wife multiple times to request that she reimburse him the \$30,460.02 that was withheld. Wife first stated she could liquidate \$10,000 within 7 to 10 days but then stated she could only afford to pay \$500 per month towards this sum. Husband states that payment of \$500 per month would take over five years to satisfy the obligation, excluding interest, and does not constitute reasonable compliance with a court-ordered indemnification obligation. Husband attached a printout from the Transparent California website which appears to show that Wife earned \$221,655 in income in 2024 as the Deputy Director for Planning of the San Francisco County Transportation Authority. Husband asks the Court to:

- a. Order Wife to pay Husband \$30,460.02 within 10 calendar days of the Court’s order;
- b. Award Husband statutory interest on this amount at the rate of 10% per annum commencing 3/26/2026;

- 1 c. Award Husband \$1,200 in Family Code section 271 “reflecting the time and effort I have
2 expended as a result of Petitioner’s failure to comply with the judgment;”
- 3 d. Authorize enforcement remedies, including but not limited to earnings assignment and
4 other collection methods, and authorize Husband to proceed with enforcement without
5 further hearing if Wife fails to pay within the timeframe ordered by the Court.
- 6 5) Per the Proof of Electronic Service filed 4/13/2026, Husband’s Request for Order was emailed to
7 Wife on 4/11/2026.
- 8 6) The Court notes that, per the Findings and Orders filed 4/14/2025, the parties agreed to electronic
9 service.
- 10 7) Per the Findings and Order After Hearing filed 6/8/2026, the prior 5/28/2026 hearing was
11 continued to 8/4/2026 because there was no evidence in the record that Wife had been served
12 with a file-endorsed copy of Husband’s 4/17/2026 Request for Order, and therefore there was no
13 evidence in the record that Wife had received notice of the hearing date. Husband was ordered to
14 serve on Wife a blank Responsive Declaration, the Tentative Ruling Instructions, and the
15 Findings and Order After Hearing for the 5/28/2026 hearing date.
- 16 8) Per the Proof of Electronic Service filed 7/2/2026, the following pleadings were emailed to Wife:
17 Findings and Order After Hearing, Request for Order, Responsive Declaration, and Tentative
18 Ruling Instructions.
- 19 9) Per the Proof of Service filed 7/8/2026, those same pleadings were left at an address for Wife on
20 7/7/2026 between the hours of nine in the morning and five in the afternoon, in a conspicuous
21 place in the office “in accordance with C.C.P. 1011.”
- 22 10) Wife has filed no pleadings responding to Husband’s Request for Order filed 4/17/2026.

23 **B. Findings and Order**

- 24 1) The Court hereby grants Husband’s unopposed request.
- 25 2) No later than Friday, 8/28/2026 at 5:00 PM, Wife shall pay Husband \$30,460.02. Failure to make
26 payment by this date will result in statutory interest accruing at a rate of 10% per annum per Code
27 of Civil Procedure section 685.010.
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1 3) Husband's request for attorney's fees sanctions in the amount of \$1,200 is denied without
2 prejudice as Husband has not presented evidence that he actually incurred attorney's fees to
3 pursue his 4/17/2026 Request for Order.

4 4) If Wife does not comply with this order, Husband may pursue enforcement remedies. Whether or
5 not further hearing is needed depends upon the nature of Husband's request.

6 5) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ABEBAYEHU GETACHEW FEKE,	)	Case Number: FDI-25-801531
Petitioner	)	Hearing Date: August 4, 2026
VS.	)	Hearing Time: 9:00 AM
MEKDELAWIT NESSIBU MEKURIA,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), SPOUSAL OR
PARTNER SUPPORT, CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Abebayehu Feke (Father) and Respondent Mekdelawit Mekuria (Mother) married on
2/12/2009. The parties agree they separated on 8/1/2024, for a marriage of 15 years and 6 months.
The parties have one minor child, Blen (DOB: 9/6/2010, age 15). Both parties are self-
represented.
- 2) On for hearing is Mother’s Request for Order filed 4/20/2026 seeking custody and visitation
orders as well as guideline child support and temporary guideline spousal support retroactive to
the parties’ date of separation. Mother states, “Our child has ongoing monthly needs, including
approximately \$500 for food, \$400 for school and activities, and \$300 for other necessities. My
monthly rent is \$2,338. I earn approximately \$5,000 per month and have been covering the
majority of these expenses alone, which has caused financial hardship and increased debt.”
- 3) On 7/2/2026, a Child Custody and Visitation Stipulation and Order was entered which awards
Mother sole legal and sole physical custody of Blen. The stipulation provides that Father will pick

up Blen every morning at 7:45 AM from Mother's residence and drop her off at school and that Father will pick up Blen from school every Monday and drop her off at her mother's residence by 6 PM. The parties are to coordinate dates and times for Father's visitation during weekends, vacations, and holidays.

- 4) On 7/8/2026, Father filed an Income and Expense Declaration. He states that he is 52 years old and works 40 hours per week, earning \$30.62 per hour as a valet attendant. Father states he earns on average \$200 per month for overtime. Father also states that he earns \$1,200 per month in net self-employment income as a driver for Uber. Father reports that he has \$11,003 in accumulated vacation and sick hours through his employer. Father did not attach paystubs or a Schedule C or Profit and Loss Statement for his Uber driving.
- 5) Attached to Father's 7/8/2026 Income and Expense Declaration is a declaration wherein Father asks the Court to deny Mother's request for support retroactive to August 2024. Father states that in August 2024 (parties' date of separation), Mother stopped contributing to household and shared family expenses. Father states that from June 2024 through July 2025, he was responsible for all household and community expenses including rent of \$2,100 per month, \$274 per month for Mother's life insurance premiums, credit card debt incurred as a result of Mother's three-month "vacation" which Mother took before the parties' separation, \$961 per month for car payments, \$150 per month for vehicle insurance, \$900 for vehicle registration, and tuition expenses of \$212 per month. Father states he moved out of the marital residence in June 2025. Father requests reimbursement for Mother's share of household and community expenses that he paid between August 2024 through June 2025.
- 6) On 7/17/2026, Mother filed an Income and Expense Declaration. Mother states that she is 45 years old and is a lead host for a restaurant. Mother states that she works 32 hours per week and is paid \$5,792 in gross per month. Mother states that her work hours were reduced and her income fluctuates due to reduced hours and variable tips.

B. Findings and Order

1) Guideline Child and Temporary Spousal Support

- a. Mother's request for child support and temporary spousal support retroactive to the parties' date of separation is denied.

- 1 b. Effective 4/20/2026 (the date Mother filed her Request for Order), in accordance with the
2 XSpouse calculation attached hereto and incorporated herein, Father shall pay temporary
3 guideline spousal support of \$0 and Father shall pay Mother guideline child support of
4 \$1,086 per month. One-half shall be due and payable by the 1st of the month and one-half
5 shall be due and payable by the 15th of each month.
- 6 c. Child support for August 2026 shall be due and payable in full no later than 8/15/2026.
- 7 d. Based on the foregoing, Father owes Mother child support arrears in the amount of \$362
8 for the period 4/20/2026 – 4/30/2026 and \$3,258 for the period 5/1/2026 – 7/31/2026, for
9 total child support arrears due and owing of \$3,620 for the period 4/20/2026 – 7/31/2026.
10 Effective 9/15/2026, Father shall pay Mother an additional \$301.67 by the 15th of each
11 month for 12 months to satisfy these arrearages.
- 12 e. The XSpouse inputs are based on the following findings:
- 13 i. The Court finds that Father regularly has the child in his care 4% of the time. It is
14 unknown exactly how much additional time Father will have on weekends,
15 vacations, and holidays. The Court estimates that if Father has the child in his
16 care an additional 48 hours per month, that would amount to an additional 7% of
17 time, bringing his total timeshare to 11%.
- 18 ii. Father reports working 40 hours per week and earning \$30.62 per hour, which
19 averages out to \$5,307 per month.
- 20 iii. Father reports earning \$1,200 per month in net self-employment income driving
21 for Uber.
- 22 iv. Mother reports working 32 hours per week and earning \$36 per hour, which
23 averages out to \$4,992 per month.
- 24 v. Mother's paystubs show that she contributes on average \$566 per month to her
25 401(k).

26 2) Child Support Add-Ons

- 27 a. Effective 8/1/2026, the parties shall share all reasonable uninsured healthcare costs for
28 Blen and all educational expenses for Blen 40% (Father) and 60% (Mother).
29

- 1 b. The procedure for requesting and paying reimbursements for uninsured healthcare costs
2 for Blen shall be as set forth in Judicial Council Form FL-192.
- 3 c. The procedure for requesting and paying reimbursements for educational costs for Blen
4 shall be as follows. When a party (e.g. Party A) pays for an educational expense for Blen,
5 within 30 days of paying the expense, Party A shall present to Party B: (a) an itemized
6 statement of charges, (b) proof of payment, and (c) the amount due and owing from Party
7 B. Within 10 days of receiving this information, Party B shall submit a payment to Party
8 A for Party B's share of the expense.

9 3) No Smith / Ostler Order

- 10 a. Father reports earning overtime pay each month. Mother's pay stubs likewise reflect that
11 she occasionally earns overtime pay. Mother contends Father receives cash tips that he
12 did not report in his Income and Expense Declaration. However, Mother's pay stubs
13 similarly show that she regularly receives tips. The Court further notes that, after paying
14 child support, Father will have \$3,847 in monthly net disposable income, representing
15 approximately 41% of the parties' combined net disposable income. The Court finds that
16 this amount is insufficient to cover Father's reported monthly expenses, even before
17 considering any additional income from overtime or tips. Under these circumstances, the
18 Court finds that Father should retain any additional income from overtime or tips to meet
19 his monthly living expenses. In addition, because both parties receive overtime pay and
20 tips, the Court declines to issue a Smith/Ostler order at this time.

21 4) Review Hearing and Reservation of Jurisdiction

- 22 a. Because Father failed to attach paystubs, a Schedule C, or a Profit and Loss Statement to
23 his Income and Expense Declaration, the Court's jurisdiction to recalculate child and
24 temporary spousal support retroactive to 4/20/2026 and modify the orders set forth above
25 is reserved for the next hearing date of **Tuesday, 10/20/2026 at 9:00 AM in Dept. 404.**
- 26 b. At least 10 calendar days prior to the next hearing date, both parties shall file and serve
27 updated Income and Expense Declarations. Father shall attach to his Income and Expense
28 Declaration:
29 i. Paystubs for the immediately preceding 2 months

1 ii. Schedule C for 2025 for his Uber driving

2 iii. Profit and Loss Statement for 2026 year-to-date for his Uber driving

3 5) Other Orders

4 a. All requests for property division orders set forth in Mother's declaration filed 5/28/2026
5 are denied without prejudice and are reserved for trial.

6 b. Father requests set forth in the declaration attached to Father's 7/8/2026 Income and
7 Expense Declaration for reimbursement for Mother's share of community expenses that
8 he paid between August 2024 through June 2025 and his requests related to property
9 division are denied without prejudice and are reserved for trial.

10 c. If the parties are unable to reach agreements regarding how to divide their property
11 following the exchange of their Preliminary Declarations of Disclosure, the parties may
12 file an At Issue Memorandum to request a Status Conference, which is the first step
13 towards obtaining a Mandatory Settlement Conference and eventual trial date.

14 d. The parties are encouraged to seek assistance from the ACCESS Center for information
15 regarding how to proceed with their case. Information for contacting the ACCESS Center
16 can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.

17 6) The Court will prepare the Findings and Order After Hearing.
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Fixed Shares	Father	Mother	Monthly figures	Cash Flow			
#of children	0	1	2026		Guideline	Proposed	
% time with NCP	11.00 %	0.00 %		Comb. net spendable	9417	9432	
Filing status	SINGLE	HH/MLA	GUIDELINE	Percent change	0%	0%	
# exemptions	1 *	2 *	Nets(adjusted)	Father			
Wages+salary	5307	4992	Father	4949	Payment cost/benefit	-1086	-923
Self-employed income	1200	0	Mother	4468	Net spendable income	3863	4026
Other taxable income	0	0	Total	9417	Change from guideline	0	162
TANF+CS received	0	0	Support		% of combined spendable	41%	43%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%	1145%
New spouse income	0	0	Guideln CS	1086	Total taxes	1558	1334
401(k) employee contrib	0	566	S.Clara SS	0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	1086	# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	4057	4057
CS paid prev marriage	0	0			Mother		
Health insurance	0	0			Payment cost/benefit	1086	938
Other medical expense	0	0			Net spendable income	5554	5406
Property tax expense	0	0			Change from guideline	0	-148
Ded interest expense	0	0	Proposed		% of combined spendable	59%	57%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	-1045%
Misc tax deductions	0	0	CS	1148	Total taxes	524	734
Qual bus income ded	0	0	SS	0	Dep. exemption value	0	0
Required union dues	0	0	Total	1148	# withholding allowances	0	0
Mandatory retirement	0	0	Saving	14	Net wage paycheck	3497	3497
Hardship deduction	0 *	0 *	Releases	1			
Other GDL deductions	0	0	Released to Father				
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	11 - 89	0	0	0	Father	1086	Father	1086	Father
	11 - 89	0	0	0	Father	1086	Father	1086	Father

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

EMILY MEGHAN MORROW HOWE,

Petitioner

VS.

DYLAN WISEMAN,

Respondent

) Case Number: FDI-25-802119

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHANGE OF SPOUSAL OR PARTNER SUPPORT, IMPUTATION OF
INCOME/ GAVRON WARNING/ SEEK WORK ORDER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Emily Howe (Wife) and Respondent Dylan Wiseman (Husband) married on 8/17/2018.
The agree they separated on 10/1/2025, for a marriage of 7 years and 1 month. The parties do not
have minor children. Wife is represented by attorney Kelly Gamble. Husband is represented by
attorney Louise Sackley.
- 2) On 1/13/2026, a Stipulation and Order for Temporary Spousal Support and Attorney Fees and
Costs was entered which provides in relevant part:
 - a. Effective 11/1/2025, Husband shall pay Wife \$8,513 per month in temporary spousal
support.
 - b. Husband shall pay Smith / Ostler temporary spousal support to Wife.
 - c. Husband shall pay \$10,000 towards Wife's attorney's fees and costs.
- 3) Now on for hearing is Husband's Request for Order filed 5/28/2026 asking the Court to modify
the temporary spousal support order. Husband asks the Court to impute at least \$200,000 in

1 annual income to Wife; in the alternative, Husband asks the Court to subject Wife to a Seek Work
2 Order and issue a Gavron warning. Husband states his base salary has decreased and Wife's
3 income has increased, which warrants a modification of temporary spousal support. Husband also
4 claims that Wife is underemployed, both in terms of the number of hours she is working (she
5 works 30 hours per week) as well as the income she is earning. Husband states that Wife is
6 capable of earning at least \$200,000 annually.

7 4) On 5/28/2026, Husband filed a Declaration of Lisa Trustin, vocational consultant. Ms. Trustin
8 states that she was retained to prepare a labor market report regarding the employability and
9 earning capacity of someone of Wife's background, education, and experience. Ms. Trustin
10 writes, "Ms. Howe has 25 years of work experience in marketing and brand management for
11 educational institutions, media, communications, consulting companies, individuals and most
12 recently, for a law firm in the San Francisco Bay Area." According to Ms. Trustin, someone with
13 Wife's education, background, and experience could qualify for positions such as Creative
14 Marketing Lead, Public Relations, Media and Events Manager, Director of Brand Marketing,
15 Brand and Content Lead, Marketing and Communications Manager, and Solutions Marketing
16 Lead. Ms. Trustin states that based on information found within the California EDD's
17 Occupational Employment and Wage Data and Salary.com, someone with Wife's background,
18 education, and experience could earn between \$171,704 and \$241,630 based on a variety of job
19 titles – advertising and promotion managers, marketing managers, PR Manager, PR Director, and
20 Strategic Marketing Director.

21 5) On 6/24/2026, Wife filed an Income and Expense Declaration. Wife states that she works 30
22 hours per week and earns \$7,500 per month as a marketing lead for OIG. Wife also states that she
23 earns on average \$200 per month from her DEI consulting business. Wife writes that she has
24 experienced a change in income because "My industry, DEI, is now prohibited."

25 6) On 7/17/2026, Wife filed a Responsive Declaration. Wife agrees to modify spousal support but
26 asks that the Court deny Husband's request to impute additional income to her or to subject her to
27 a Seek Work Order. Wife states that she agrees to a Gavron warning. Wife states that Husband
28 stopped paying her the full amount of temporary spousal support owed to her under the
29 stipulation and has unilaterally been paying her \$6,679 per month based on Husband's new

support calculations. Wife also states that Husband has not paid her what she is owed for Smith / Ostler temporary spousal support. Wife asks that the Court use Husband's total projected annual compensation rather than his base salary. Wife states that Ms. Trustin never interviewed her or inquired about her actual job responsibilities throughout her career. Wife contends Ms. Trustin substantially overstates her earning capacity. Wife provided her earnings history, which show that between 2000 – present, she earned in the range of \$28,000 to \$145,000 per year and she is currently earning \$90,000 working 30 hours per week. Her job titles have included Academic Technology Program Manager; Women's and Gender Studies Manager; Public Relations Communications Director; Executive Assistant; Director of Change Management and Communications; Manager and Consultant, Organizational Transformation; Founder and Consultant; and (currently) Marketing Lead. Wife writes, "Viewed as a whole, my career has consistently focused on communications, organizational change, public relations, consulting, executive coaching, and higher education. I have marketed my own consulting practice, helped market a small consulting firm, and now market OIG, but before joining OIG I had never been employed to market a business as my profession. Likewise, I have never held positions responsible for product marketing, demand generation, marketing analytics, marketing technology, sales pipeline management, or leading a corporate marketing department. Those are the skills someone garnering 200K salary would need; not to mention experience actually doing it." Wife also states that she owns a consulting business which generates income from several sources, including DEI-related consulting, coaching, speaking, workshops, programs, and helping professionals develop DEI-related leadership skills and attract clients. However, "Beginning around 2024, the market for DEI in the workplace dramatically shifted and nearly all of my consulting work disappeared. My online programs also declined because they were closely tied to DEI. Rather than remain unemployed or wait for the market to recover, I sought stable employment while continuing to maintain my consulting business on a much smaller scale (currently one program and approximately \$1,700 in the business account)."

- 7) On 7/28/2026, Husband filed a Reply Declaration reiterating his original requests. Husband states, "Ms. Trustin's report does not characterize Emily's background as senior corporate marketing...Nor does the report provide salary data for only senior corporate marketing jobs. It

1 includes PR, Media and Events Manager, Brand and Content Lead job listings and salary data for
2 PR roles.” Husband states that he only received additional income in March 2026 and July 2026.
3 Husband states he did not pay Smith / Ostler support in March 2026 because he was not
4 expecting additional income during that month as bonuses are not typically paid in March.
5 Husband also states, “The total amount of bonus temporary spousal support due to Emily is
6 \$10,556.09. I have paid Emily \$9,848 and will pay the remaining \$708.09 forthwith.”

- 7 8) On 7/28/2026, Husband filed an Amended Income and Expense Declaration. Husband states that
8 he is a lawyer for Buchalter, LLP. He states that he works 45 – 50 hours per week. The paystubs
9 attached to Husband’s Income and Expense Declaration show that he earns on average \$38,841
10 per month in base salary. Husband states that he earns on average \$16,211 in bonuses per month.
11 Husband also reports earning \$1,091 per month in net rental income (not including depreciation).
12 9) On 7/28/2026, Husband filed a Statement of Support Calculations.

13 **B. Findings and Order**

- 14 1) The Court finds that the parties’ recent changes in income are material changes in circumstance
15 warranting a modification of the current temporary spousal support order.
16 2) Effective 6/1/2026, in accordance with the XSpouse calculation attached hereto and incorporated
17 herein, Husband shall pay to Wife temporary base guideline spousal support of \$4,619 per month.
18 Support shall be paid in two equal installments on the first and fifteenth day of the month.
19 3) The parties shall meet and confer to determine whether base or Smith / Ostler support arrears or
20 credits are owed for the period 6/1/2026 – 7/31/2026. Husband shall pay any additional support
21 arrears or credits no later than 9/30/2026.
22 4) In the event that Husband receives any gross income over and above the amounts listed on the
23 XSpouse calculation, said income shall be applied to the bonus table attached to the XSpouse
24 calculation. Within 5 days of receipt of additional income, Husband shall calculate the amount of
25 additional spousal support due to Wife, issue a check to her for the amount due, and provide her
26 with proof of the additional income received, for example, a paystub. Within 10 days of receipt,
27 Wife shall review the calculation and advise Husband if she disagrees with the calculation.
28 5) The Xspouse contains inputs on which the parties agree. For the inputs for which the parties do
29 not agree, the Court makes the following findings and orders.

- 1 a. Wife's request that the Court use Husband's total anticipated annual compensation in the
2 XSpouse calculation is denied. The Court will use Husband's base salary and subject
3 additional earnings to a Smith / Ostler order as set forth above.
- 4 b. Husband's request to impute to Wife \$200,000 in annual income is denied. The Court is
5 not fully persuaded that Wife can earn this level of income. The Court finds this amount
6 exceeds Wife's historical earnings to date. The Court also notes that Ms. Trustin did not
7 interview Wife directly; had she done so, Ms. Trustin's analysis would have been more
8 persuasive. Wife currently earns \$7,500 per month while working 30 hours per week, or
9 approximately \$57.69 per hour. No evidence was presented demonstrating that Wife is
10 unable to work full time. The Court further notes that Wife's consulting business is
11 presently generating minimal income, and Wife could devote those additional hours to
12 compensated employment. Based on the totality of the evidence before it, including Ms.
13 Trustin's report, the Court finds that Wife has the ability and opportunity to work 40
14 hours per week at a rate of \$57.69 per hour, or \$10,000 per month. The Court will impute
15 earning capacity to Wife in the amount of \$10,000 per month. This finding is made
16 without prejudice to the Court's ability to find that Wife is capable of earning more than
17 this amount when it determines long-term / post-Judgment spousal support.
- 18 c. The Court will also input as additional taxable income for Wife \$216 per month in
19 average interest income and \$758 per month in average non-qualified dividend income,
20 which Husband states Wife reported in her 2025 tax return.
- 21 6) Husband's unopposed request for a Gavron warning is granted. Pursuant to Family Code section
22 4330(b), the Court advises Wife that she is expected to make reasonable good faith efforts to
23 become self-supporting. Failure to make such reasonable good faith efforts may be considered by
24 the Court as a factor in determining whether spousal support should be modified or terminated.
- 25 7) Husband's attorney shall prepare the Findings and Order After Hearing.
- 26 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
27 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
28 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
29 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the

1 proposed order after hearing directly to the court. Failure to submit the order after hearing within
2 10 days may allow the other party to prepare a proposed order and submit it to the court in
3 accordance with CA Rules of Court, Rule 5.125(d).
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Fixed Shares	Husband	Wife	Monthly figures		Cash Flow		
#of children	0	0	2026			Guideline	Proposed
% time with NCP	0.00 %	0.00 %	GUIDELINE		Comb. net spendable	29043	29043
Filing status	MFS->	<-MFS	Nets(adjusted)		Percent change	0%	0%
# exemptions	1 *	1 *			Husband		
Wages+salary	38841	10000	Husband	21267	Payment cost/benefit	-4619	-4619
Self-employed income	0	0	Wife	7776	Net spendable income	16648	16648
Other taxable income	1091	974	Total	29043	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	57%	57%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	0	Total taxes	12383	12383
401(k) employee contrib	2708	0	S.Clara SS	4619	Dep. exemption value	0	0
Adjustments to income	295	0	Total	4619	# withholding allowances	0	0
SS paid prev marriage	5000	0	-		Net wage paycheck	19006	19006
CS paid prev marriage	0	0			Wife		
Health insurance	1282	0			Payment cost/benefit	4619	4619
Other medical expense	0	0			Net spendable income	12395	12395
Property tax expense	1372	0			Change from guideline	0	0
Ded interest expense	1495	0	Proposed		% of combined spendable	43%	43%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	0	Total taxes	3198	3198
Qual bus income ded	0	0	SS	4619	Dep. exemption value	0	0
Required union dues	0	0	Total	4619	# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	6824	6824
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Husband pays Guideline SS, Proposed SS

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband

Husband's Bonus	Child Support		Spousal Support		Total CS	Total SS (adjusted)
	% of bonus	\$	% of bonus	\$		
0	0.00	0	0.00	0	0	0
5,000	0.00	0	20.82	1,041	0	56,469
10,000	0.00	0	20.82	2,082	0	57,510
15,000	0.00	0	20.82	3,123	0	58,551
20,000	0.00	0	20.82	4,164	0	59,592
25,000	0.00	0	20.76	5,191	0	60,619
30,000	0.00	0	20.71	6,212	0	61,640
35,000	0.00	0	20.61	7,214	0	62,643
40,000	0.00	0	20.49	8,195	0	63,624
45,000	0.00	0	20.39	9,176	0	64,605
50,000	0.00	0	20.31	10,157	0	65,586
55,000	0.00	0	20.25	11,138	0	66,567
60,000	0.00	0	20.20	12,119	0	67,548
65,000	0.00	0	20.15	13,100	0	68,529
70,000	0.00	0	20.12	14,081	0	69,510
75,000	0.00	0	20.08	15,062	0	70,491
80,000	0.00	0	20.05	16,043	0	71,472
85,000	0.00	0	20.03	17,024	0	72,453
90,000	0.00	0	20.01	18,005	0	73,434
95,000	0.00	0	19.99	18,986	0	74,415
100,000	0.00	0	19.96	19,960	0	75,388
105,000	0.00	0	19.92	20,921	0	76,349
110,000	0.00	0	19.89	21,882	0	77,310
115,000	0.00	0	19.86	22,843	0	78,271
120,000	0.00	0	19.84	23,804	0	79,232
125,000	0.00	0	19.81	24,765	0	80,193
130,000	0.00	0	19.79	25,726	0	81,154
135,000	0.00	0	19.77	26,687	0	82,115
140,000	0.00	0	19.75	27,648	0	83,076
145,000	0.00	0	19.73	28,609	0	84,037
150,000	0.00	0	19.71	29,570	0	84,998
155,000	0.00	0	19.70	30,531	0	85,959
160,000	0.00	0	19.68	31,492	0	86,920
165,000	0.00	0	19.67	32,453	0	87,881
170,000	0.00	0	19.66	33,414	0	88,842
175,000	0.00	0	19.64	34,375	0	89,803
180,000	0.00	0	19.63	35,336	0	90,764
185,000	0.00	0	19.62	36,297	0	91,725
190,000	0.00	0	19.61	37,258	0	92,686
195,000	0.00	0	19.60	38,219	0	93,647
200,000	0.00	0	19.59	39,180	0	94,608
205,000	0.00	0	19.58	40,141	0	95,569
210,000	0.00	0	19.57	41,102	0	96,530
215,000	0.00	0	19.56	42,063	0	97,491
220,000	0.00	0	19.56	43,024	0	98,452

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband						Total CS	Total SS (adjusted)
Husband's Bonus	Child Support % of bonus	\$	Spousal Support % of bonus	\$			
225,000	0.00	0	19.55	43,985		0	99,413
230,000	0.00	0	19.54	44,946		0	100,374
235,000	0.00	0	19.53	45,907		0	101,335
240,000	0.00	0	19.53	46,868		0	102,296
245,000	0.00	0	19.52	47,829		0	103,257
250,000	0.00	0	19.52	48,790		0	104,218

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STEVEN ALAN GEYER,

Petitioner

VS.

BAN THUC BANG,

Respondent

) Case Number: FDI-26-802613

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Steven Geyer (Husband) and Respondent Dan Bang (Wife) married on 7/6/2012. They agree they separated on 3/2/2025, for a marriage of 12 years and 8 months. The parties do not have minor children. Wife is represented by attorney Brian Mayer of the Schoenberg Family Law Group. Husband is represented by attorney Kathleen Morgan.
- 2) On 3/26/2025, in related Case No. FDV-25-818252, a one-year Domestic Violence Restraining Order After Hearing (DVRO) was entered to protect Husband against Wife.
- 3) On 3/13/2026, a Stipulation and Order was entered wherein the parties agreed for the DVRO to be extended an additional five years to 3/13/2031.
- 4) There are currently no orders in place requiring either party to pay spousal support to the other.
- 5) The Court also notes that Husband has not filed a request to seek attorney's fees and costs under Family Code section 6344.
- 6) Now on for hearing is Wife's Request for Order filed 5/21/2026 asking the Court to award her \$84,990 in attorney's fees and costs, \$41,990 for fees incurred to date and projected fees and

1 \$43,000 for forensic service and miscellaneous fees. Wife states that she has incurred attorney's
2 fees in the amount of \$9,165 to date.

3 7) Included as an attachment to Wife's Request for Order is a declaration by Wife's attorney. Mr.
4 Mayer summarizes the issues in this case as follows: "This is a long-term marriage between
5 parties with a major disparity in income. Community property to be characterized and divided
6 includes real property, unknown retirement and other financial accounts, a beauty supply store
7 and salon opened during the marriage at behest of Petitioner. The valuation and division of this
8 business is anticipated to be an objective of this instant action. The Respondent reports she was
9 excluded from knowledge of financial matters during the marriage and, at the time of this
10 declaration, the Petitioner has failed to comply with his mandatory preliminary disclosure
11 requirements, leading to the need for intervention and analysis from a forensic accountant."

12 8) On 5/27/2026, Husband filed a Declaration Regarding Service of Preliminary Declaration of
13 Disclosure stating that his initial financial disclosures were emailed to Wife's attorney on
14 5/27/2026.

15 9) On 5/27/2026, Husband filed an Income and Expense Declaration. Husband states that he is 58
16 years old and is a consultant for Slalom US. The paystubs attached to Husband's declaration
17 show that he earns \$14,389 in base monthly salary. As of 5/17/2026, Husband had also earned
18 year-to-date bonus income of \$10,522. Husband states that he owns a management consulting
19 business which has been "dormant since 2024." Husband reports \$117,887 in cash savings and \$0
20 in easily saleable investments. Husband also states that he owns \$763,768 in real property.
21 Husband does not report any debts. Husband reports estimated monthly expenses of \$9,689.

22 10) On 6/1/2026, Wife filed an Income and Expense Declaration. Wife states that she owns a beauty
23 supply and salon shop and that she earns on average \$579 per month. Wife states that she has
24 \$10,590 in cash savings and that her other assets are unknown because this information is in the
25 possession of Husband. Wife states that her proposed monthly needs equal \$5,470 and that
26 \$2,028 of this is paid by her son. Wife states that she owes \$20,900 to friends and family for
27 attorney's fees and she owes \$2,500 in credit card debt. Wife states she has paid her attorney
28 \$20,900 to date and still owes \$7,929.

1 11) On 7/20/2026, Husband filed a Responsive Declaration asking the Court to deny Wife's request.

2 Husband states that he believes Wife earns significantly more than she reports from her "cash
3 heavy business." Husband also accuses Wife of hiding or obscuring assets. Husband states, "I
4 was the victim of domestic violence and should not have to pay for her attorney's fees and costs.
5 In addition, I am currently supporting Respondent's son. Respondent and I agreed that her son
6 and his young daughter could live in our attached unit, but they would pay rent and contribute to
7 utilities. He moved in and now has a significant other with him. His young daughter never moved
8 in. Respondent's son continues to live in our attached unit without paying rent, utilities or making
9 any financial contribution to the household even though Respondent has not resided in the house
10 since March 2025." Husband further states, "I agree that a forensic accountant should review
11 Respondent's business income, but it will not be a valid exercise if she withholds information
12 about the amount of cash she receives. This is not a complex case. I am a salaried employee. I
13 purchased our home prior to marriage, and I acknowledge that I paid mortgage from my salary
14 during the marriage so Moore/Marsden analysis will need to be done by a forensic accountant. To
15 date I have paid \$7,528.66 in legal fees and costs and this includes the legal fees for the Domestic
16 Violence Restraining Order hearing... I do not have sufficient funds to pay my own attorney's
17 fees and costs, the half the cost of a forensic account and Respondent's attorney's fees and costs.
18 I do not believe the request is reasonable and necessary."

19 12) On 7/20/2026, Husband's attorney filed a declaration stating that she anticipates Husband will
20 incur "an additional \$10,000 in legal fees related to this matter, and may incur an additional
21 \$5,000 for a forensic accountant for a Moore/Marsden calculation and analysis of Respondent."

22 13) On 7/20/2026, Husband filed a Memorandum of Points and Authorities.

23 14) On 7/27/2026, Wife filed a Reply Declaration. Wife states, "While Discovery in this case is
24 ongoing, documents already produced by the Petitioner show that, in addition to Petitioner's
25 acknowledged \$117,887 and acknowledged \$763,768, the Petitioner has an additional \$901,458
26 in a rollover IRA and \$73,068 in a contributory IRA, for total net assets under his control in the
27 amount of \$1,856,181..." Wife states that Husband's claims that she is earning more are false and
28 that Husband previously managed all of Beauty Shop's finances. Wife also states that the parties
29 filed joint tax returns to date and the parties' prior returns are consistent with the income she now

1 reports. Wife suggests that the Court appoint an Evidence Code section 730 expert to perform a
2 business valuation, with Husband paying the cost and Husband proposing three names from
3 which she will select one. Wife also states that Husband is forfeiting \$3,600 per month for rental
4 space “occupied by family members” (the Court assumes Wife is referencing the fact that her son
5 currently lives with Husband and pays no rent).

6 **B. Findings and Order**

- 7 1) The Court finds there is a disparity in access to funds to pay legal fees. The Court hereby awards
8 to Wife \$15,000 in need-based attorney’s fees and costs under Family Code section 2030, which
9 the Court finds is a just, reasonable, and necessary amount given the totality of the circumstances
10 including the moderate complexity of the issues in this case and the fact that Husband incurred
11 attorney’s fees and costs to date to secure a restraining order against Wife. The Court has
12 considered the fact that Husband was granted a restraining order against Wife but has decided to
13 issue a need-based fee award given there is no order requiring Husband to pay support to Wife, it
14 appears Wife is without resources to pay her attorney’s fees (apart from borrowing money), and
15 the parties need to determine and divide the community estate.
- 16 2) The parties shall meet and confer to appoint financial experts to perform a Moore Marsden
17 analysis as well as a business valuation of the beauty supply shop and salon. No later than
18 8/30/2026, Husband shall propose two names for an expert to perform a Moore Marsden analysis
19 and two names for an expert to perform a business valuation of the beauty supply shop and salon.
20 No later than 9/15/2026, Wife shall select one name for each type of expert. Husband shall
21 advance the cost of the financial experts to perform their analyses and draft reports. The parties
22 shall share the cost of the experts equally, with Wife’s share of the costs to come from her share
23 of the community estate upon division. Once the parties have decided on which experts to retain,
24 both parties shall be CC’d on all communications with the experts. Both parties shall promptly
25 provide any requested information or documentation from the experts.
- 26 3) Husband’s attorney shall prepare the Findings and Order After Hearing.
- 27 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
28 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
29 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within
3 10 days may allow the other party to prepare a proposed order and submit it to the court in
4 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALLISON ROBINSON,

Petitioner

VS.

SILVIA ROBINSON,

Respondent

) Case Number: FDI-26-802639

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom video at 10AM on 8/4/2026 in Department 404 to discuss possible modifications to the current parenting time schedule. The Court tentatively finds it is in Isabella’s best interest for there to be a longer period of regular and consistent Soberlink testing and AA attendance before a significant increase in Silvia’s parenting time is made. At the 8/4/2026 hearing, the Court is inclined to set a further review hearing in approximately 4 months.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Allison Robinson (Allison) and Respondent Silvia Robinson (Silvia) have one minor child together, Isabella (DOB 12/24/2024, age 1). Allison lives in Walnut Creek; Silvia lives in San Francisco.
- 2) At a 5/28/2026 hearing, the Court ordered that:

- a. Silvia shall have parenting time with Isabella on Saturdays from 9am to 6pm and Mondays and Fridays from 9:30am to 6:45pm (with the nanny present with Silvia and Isabella on Mondays and Fridays when Silvia works from home) (the parties appear to have slightly adjusted the start and end times of these visits since the hearing);
 - b. Allison shall take Isabella to Silvia in San Francisco for the start of each visit, and Silvia shall take Isabella to Allison in Walnut Creek at the end of each visit;
 - c. Silvia shall continue Soberlink testing as she has been doing prior to the hearing; and
 - d. Silvia shall continue to attend AA meetings and shall provide proof of attendance to the Court prior to the next hearing.
- 3) The Court set a review hearing for 8/4/2026 and ordered the parties to file and serve update declarations at least 10 days before the hearing. Both parties filed update declarations, which the Court has reviewed and considered. Allison requests, among other things, a Brief Focused Assessment and an evidentiary hearing before any significant custody and parenting time modifications are made. Silvia has provided the Court with proof of 186 negative and 0 positive Soberlink tests and AA meeting attendance. She requests, among other things, a 2-2-3 parenting time schedule beginning 8/4/2026.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) **The parties are ordered to appear at 10AM on 8/4/2026 in Department 404 to discuss possible modifications to the current parenting time schedule. The Court tentatively finds it is in Isabella's best interest for there to be a longer period of regular and consistent Soberlink testing and AA attendance before a significant increase in Silvia's parenting time is made. At the 8/4/2026 hearing, the Court is inclined to set a further review hearing in approximately 4 months.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YESENIA MOZ CASTRO,	)	Case Number: FDV-23-816763
Petitioner	)	Hearing Date: August 4, 2026
VS.	)	Hearing Time: 9:00 AM
JUAN CARLOS MENENDEZ FUNES,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)
TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Yesenia Moz Castro (Mother) and Juan Carlos Menendez (Father) have one minor child together, Valerie (DOB 4/29/2021, age 5).
- 2) On 7/19/2023, this Court issued a 2-year Domestic Violence Restraining Order (DVRO) against Father protecting Mother. The Court awarded sole legal and sole physical custody of Valerie to Mother, with one hour of weekly parenting time for Father, supervised by the maternal grandmother. The Court ordered that the grandmother may cancel the visit if she is not available or if she believes Father is not sober.
- 3) On 2/11/2026, Father filed a request seeking parenting time every Saturday from 1PM to 5PM. He stated he did not see Valerie after 2024 because Mother did not let him see her. He stated that Mother recently asked him if he would agree to have her current husband adopt Valerie.
- 4) Mother filed a response stating Father saw Valerie only 3 or 4 times, spent only 10 to 30 minutes with her each time, had not seen her since 2/24/2024, and had not called Valerie on her birthday or other special occasions. Mother stated she also assumed the parental role for Father’s daughter

Victoria for some time because Father was unable to care for her, had multiple DVROs against him, and had lost custody of a son.

- 6) At a 4/30/2026 hearing on Father's request, the Court ordered that Father shall have visits every Saturday from 6:30PM to 7:30PM, supervised by the maternal grandmother at the grandmother's house or at another location approved by the grandmother. The Court set a review hearing for 7/14/2026, which was continued to 8/4/2026.
- 7) On 4/30/2026 (the same day as the last hearing), Mother filed a new request to suspend visits. She reiterates many of the statements she made in her original request. This request is set for hearing on 8/4/2026.
- 8) On 7/9/2026, Father filed a declaration stating the visits have been going well and he wishes to continue seeing Valerie. He attaches a May 2026 certificate for completion of a parenting class from Kids' Turn.
- 9) The parties attended mediation on 7/15/2026 and were unable to reach an agreement.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The Court finds it is in Valerie's best interest to maintain the current order. The parties shall continue to follow all orders set forth in the 6/1/2026 Findings and Order After Hearing (from the 4/30/2026 hearing).
- 3) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMBER BACCHUS,	)	Case Number: FDV-25-818805
Petitioner	)	Hearing Date: August 4, 2026
VS.	)	Hearing Time: 9:00 AM
RAYSHAWN DOMINIQUE WARD SR,	)	Department: 404
Respondent	)	Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Amber Bacchus (Mother) and Rayshawn Dominique Ward, Sr. (Father) have one minor child together, Rayshawn, Jr. (DOB 2/14/2024, age 2).
- 2) On 12/31/2025, this Court denied Mother’s request for a domestic violence restraining order against Father and granted her sole legal and sole physical custody of the child, with parenting time for Father for 2 hours after daycare on Tuesdays and Thursdays, with exchanges at the SFPD Bayview Police Station. The Court ordered that the parties may have peaceful written communication, only regarding their child, and only through the Talking Parents app.
- 3) At a 5/7/2026 review hearing, the Court ordered that in addition to the Tuesday and Thursday parenting time, Father shall have parenting time every Sunday from 10am to 3pm, with exchanges at the SFPD Bayview Police Station. The Court ordered that Father shall have access to the child's school and medical records, that all custody exchanges shall be peaceful, and that the parents shall enroll in both parenting and coparenting classes through Kids' Turn (or a

comparable program) by 6/1/2026. The Court set a review hearing for 8/4/2026 and ordered the parties to file and serve update declarations at least 10 days before the 8/4/2026 review hearing.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Neither party has filed an update declaration. The matter is therefore taken off calendar. The parties shall continue to follow the prior Court orders.
- 3) If either party has new requests relating to custody and parenting time, they may file a new request for order.
- 4) The Court will prepare the Findings and Order After Hearing.